

The Dock Workers (Regulation of Employment) Amendment Act, 1980

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[Act 49 of 1980](#)

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[An Act further to amend the Dock Workers \(Regulation of Employment\) Act, 1948.](#)

[BE it enacted by Parliament in the Thirty-first Year of the Republic of India as follows:-](#)

[1.](#)

[Short title.-](#)

[This Act may be called the Dock Workers \(Regulation of Employment\) Amendment Act, 1980.](#)

[2.](#)

[\[Amendment of section 3.\] Rep. by the Repealing and Amending Act, 1988 \(19 of 1988\), s. 3 and the First Schedule \(w.e.f. 31-3-1988\).](#)

[3.](#)

[Validation.-](#)

[Every fund created or purporting to have been created and every provision with respect thereto made or purporting to](#)

have been made under the principal Act before the commencement of this Act shall, for all purposes, be deemed to be, and to have always been, as validly and effectively created or made as if the provisions of section 3 of the principal Act, as amended by this Act, had been in force at all material times and accordingly, notwithstanding any judgment, decree or order of any court,-

(a)

all contributions to any such fund received or collected before the commencement of this Act shall be deemed to be and shall be deemed always to have been as validly received or collected as if the provisions of section 3 of the principal Act, as amended by this Act, were in force at all material times;

(b)

no suit or other proceeding shall be maintained or continued in any court for the refund of, and no enforcement shall be made by any court of any decree or order directing the refund of, any such contribution which had been received or collected and which would have been validly received or collected if the provisions of section 3 of the principal Act, as amended by this Act, had been in force at all material times;

(c)

recoveries shall be made of all contributions to any such funds which have not been received or collected but which would have been received or collected if the provisions of section 3 of the principal Act, as amended by this Act, had been in force at all material times.

Explanation.-For the removal of doubts it is hereby declared that no act or omission on the part of any person, before the commencement of this Act, shall be punishable as an offence which would not have been so punishable if this Act had not come into force.

4.

[Amendment of section 8.] Rep. by the Repealing and Amending Act, 1988 (19 of 1988), s. 3 and the First Schedule (w.e.f. 31-3-1988).

5.

[Insertion of new section 8A.] Rep. by s. 3 and the First Schedule, *ibid.* (w.e.f. 31-3-1988).

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